



Print your submission for your records -
PHAR-20260423-23728

Business Name you are Reporting

- CVS Pharmacy

License Number

- PHY 47775

Address (Number and Street)

- 2006 W Avenue J

City

- Lancaster

State

- California (CA)

Zip Code

- 93536

Telephone Number

- (661) 945-2729

Person whom you dealt with and their title

- Randy (RPh)

Please briefly describe your complaint

- This complaint is filed for medical abandonment and professional misconduct by CVS Pharmacy #09785. I am in a high-risk, clinically supervised Diazepam taper. On 04/20/2026 at 9:05 AM, my provider transmitted a prescription. Chat logs from Medi-Cal Rx (Ref # [REDACTED] 311) confirm the claim was authorized (PAID) and captured three separate times: 9:06 AM, 9:40 AM, and 9:45 AM. Despite these successful authorizations, a pharmacist identifying himself as "Randy" called me at 9:45 AM from the pharmacy's line (661-945-2729) and issued a verbal constructive refusal by stating the medication would not be filled until 'tomorrow'. Medi-Cal Rx logs confirm the pharmacy manually submitted reversals at the exact time of this call to kick back the state's payment. This 16-hour intentional delay of a paid, life-sustaining medication forced me into acute withdrawal, resulting in a loss of consciousness. I was unable to secure the medication until 1:01 AM on 04/21/2026. The pharmacy's failure to dispense authorized medication to a high-risk patient constitutes a dangerous breach of professional duty.

What was the date of Purchase?

- 04/21/2026

What was the date of Incident?

- 04/20/2026

Enter Patient Date of Birth

- [REDACTED]

Does the incident involve a prescription?

- Yes

Have you had this prescription before?

- Yes

Medication Prescribed

- 5 MG Diazepam

Medication Received

- 5 MG Diazepam

Prescription Number

- [REDACTED]733

Prescribing Doctor

- [REDACTED]

Was your medication: delivered / picked up at the pharmacy / not received?

- Picked up at the pharmacy

If your prescription pick-up/delivery was delayed and you were without medication, approximately how many days did you or the person the prescription was for go without medication?

- 5 MG Diazepam: 16 hours

Was Patient Consultation Provided?

- No

Did the prescriber make any change to your prescription?

- No

Was There Patient Harm

- Yes

Please describe the symptoms and duration of symptoms

- I experienced acute autonomic distress and central nervous system (CNS) destabilization consistent with benzodiazepine withdrawal syndrome and the interruption of Medication-Assisted Treatment (MAT). Specific symptoms included severe physical tremors, cognitive impairment, and a period of lost consciousness. These symptoms are clinically documented as known risks of the sudden 16-hour medication gap I was forced into, as verified by the medical necessity statement provided by my clinical provider ([REDACTED]).

Have you discussed the symptoms with your health provider?

- Yes

Please list supporting documents in your possession such as prescription container, medication, receipts, pictures, etc.

- Medi-Cal Rx Transaction Logs (Ref # [REDACTED] 311): Verifying specific 'PAID' and 'REVERSED' timestamps for the prescription on 04/20/2026 Phone Call Logs: Documenting an incoming call from (661) 945-2729 (CVS Store #09785) at 9:45 AM on 04/20/2026 Pharmacy Sales Counter Receipt: Verifying the final pickup at 1:01 AM on 04/21/2026, confirming a 16-hour delay Clinical Medical Letter (Apr 2026): Authored by [REDACTED], establishing the high-risk nature of the Diazepam taper protocol and the standard of care required for this medication. Prescription Container/Label/Receipt: Physical evidence from the 04/21/2026 fill identifying the facility and the dispensing pharmacist. Transportation Records: Receipts for travel to the 24-hour pharmacy location during the medical emergency. California CURES Report (Generated 03/14/2026): Official state record proving a consistent, documented history of Suboxone MAT and Benzodiazepine taper prescriptions. [REDACTED] and [REDACTED] Superbills: Financial proof of out-of-pocket Benzodiazepine taper/Buprenorphine MAT expenses and treatment history, currently being processed in DHCS 4521 for reimbursement due to L.A. Care's failure to provide an adequate network of providers. L.A. Care Grievance Response (Ref #1016228): Written admission of network inadequacy and lack of specialist access.

Are you the patient?

- Yes

Enter your first name

- Nicolas

Enter your last name

- Hernandez

Enter your address (Number and Street)

- [REDACTED]

City

- [REDACTED]

State

- California (CA)

Zip Code

- 9[REDACTED]

Is your mailing address different?

- No

Best telephone number to reach you

- [REDACTED]

E-mail Address

- [REDACTED]

Pharmacy Board
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